

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 35-003
Amendments to Title 10 of the Chickasaw Nation Code
(Finance and Taxation)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation Legislature has previously enacted rules and procedures for Finance and Taxation which are codified at Title 10 of the Chickasaw Nation Code, and

WHEREAS, the Chickasaw Nation Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves amendments to Title 10 of the Chickasaw Nation Code as follows, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 10-201.9 **TESTIMONY FROM THE EXECUTIVE DEPARTMENT.**

B. The provisions of Section ~~10-210~~ 10-201.10 (Aa), (Bb) and (Cc) shall apply to representatives of the Executive Department referred to in this Section ~~10-209~~ 10-201.9.

SECTION 10-201.11 **QUESTIONING OF WITNESSES.**

B. The Committee Chairman shall set aside on the agenda sufficient time for each member of the Finance Committee to question each witness. Such period shall be planned to allow for all members of the Finance Committee to have the opportunity to question each witness.

SECTION 10-201.12 **CONCLUSION OF HEARING.**

A. Upon the presentation of comments by the last person scheduled by the Committee Chair ~~chairman~~ to appear before the Finance Committee, the Committee Chair ~~chairman~~ shall allow each member of the Finance Committee to make concluding remarks to all assembled for the hearing. No further questions from those making concluding remarks shall be allowed.

B. When the last person identified in (a), above, shall have made his final remarks, the Committee Chair ~~chairman~~ shall declare the hearing closed. No further entries into the record shall be allowed, except for those identified in Section ~~10-213~~ 10-201.13.

SECTION 10-201.13**FINALIZATION OF HEARING RECORD.**

Once the hearing record has been finalized and all nonsubstantive changes made, a final copy of the minutes of the hearing shall be provided to the Governor and to each member of the Finance Ceommittee who requests one. Any member of the Legislature requesting a final copy of the minutes shall also be provided one.

SECTION 10-301.2**BONDS PURCHASED FROM LICENSED COMPANY.**

The bonding of officers as required in Section 10-301.1 ~~10-301~~ of this Act shall be by a licensed insurance company, authorized to do business in the state of Oklahoma.

SECTION 10-602.4**AUTHORITY, AMENDMENT OF PRIOR LAW.**

B. Amendment of Prior Law

In accordance with the Constitution, the Tribal Legislature, with the adoption of this Act, hereby:

1. Modifies Enactment No. 1, adopted by the Tribal Legislature on October 1, 1984, in the following manner: delete the second paragraph of Section 4. Operations;

a. ~~delete the second paragraph of Section 4. Operations;~~

2. establishes the authority to assess and levy taxes on certain gaming operations provided: the Tribal Legislature shall adopt adequate legislation to establish a Chickasaw Nation Tax Commission to oversee and perform taxation duties as shall be devised by the Legislature.

a. ~~the Tribal Legislature shall adopt adequate legislation to establish Chickasaw Nation Tax Commission to oversee and perform taxation duties as shall be devised by the Legislature.~~

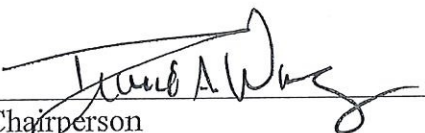
SECTION 10-602.5**TAX RATE ESTABLISHED.**

The tax rate for all gaming operations conducted inside the jurisdictional boundaries of the Chickasaw Nation on Indian-owned land, not conducted by the Chickasaw Nation itself, shall be levied at the rate of sixty (60) percent of the net profit of such gaming activities and operations.

SECTION 10-602.6**EFFECTIVE IMMEDIATELY.**

The provisions of this Act shall be placed into immediate effect upon signing by the Governor, and the Tribal Legislature shall have sixty (60) days in which to devise and adopt the legislation called for in Section 10-602.4 ~~10-624~~ above.”

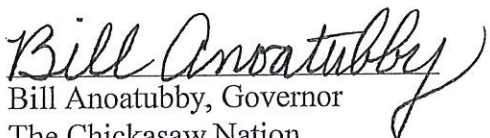
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 20, 2018, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 20 2018

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Explanation: This resolution approves amendments to Title 10 of the Chickasaw Nation Code. The amendments include the correction of Section numbers, capitalizations of defined terms, updating defined terms, formatting defects, etc.

Presented By: Legislative Committee